

EPA Compliance Workshops Don't Reduce Violations

Lessons from “The effect of compliance assistance on pollution discharges and violations of environmental regulations” by Paul J. Ferraro & Jay P. Shimshack in *Journal of Policy Analysis and Management*, 2026.

Offering polluters free help to follow the rules doesn't make them more likely to follow them. New research studying hundreds of facilities that were offered free compliance workshops found the workshops didn't reduce violations.

BACKGROUND

Environmental enforcement in the U.S. has long centered on penalties: inspect facilities, catch violations, and levy fines. **Compliance assistance** takes a different approach: **regulators help them follow the rules in the first place, through free workshops, guidance, and technical support.** The premise is that many violations stem from confusion or limited expertise rather than deliberate corner-cutting. While compliance assistance is becoming increasingly popular for the Environmental Protection Agency (EPA) instead of penalties, **whether it's actually effective has rarely been tested.**

In a new study, researchers set out to better understand how effective compliance assistance actually is, using data on hundreds of wastewater treatment facilities regulated by the Ohio EPA. Facilities that had recently been cited for violations were offered to participate in compliance workshops, which were rolled out over several months. Those that volunteered to attend received free training on how to comply with the Clean Water Act. The researchers then compared the facilities that attended the workshops against those that had not yet been trained, tracking whether violations fell after the workshops.

WHAT THE STUDY FOUND

THE WORKSHOPS' EFFECT ON VIOLATIONS, MONTH BY MONTH

Source: Ferraro & Shimshack (2026).



Note: Each point compares violations at trained facilities against facilities not yet trained, month by month around training (month 0). After training, an effect from the workshops would show up as the line moving away from zero; instead it stays flat, and the shaded band of statistical uncertainty always includes “no change.” The workshops had no detectable effect.

Evaluating whether a policy works is difficult: researchers can't see what the facilities would have done with and without

the policy. Two things make this policy hard to evaluate. First, the workshops were voluntary. This means that comparing trained and untrained facilities might not work — what if facilities that signed up were more motivated to reduce violations than those that didn't, regardless of the workshops? We might conflate two different causes of violation reduction. Second, violations were falling across the board in these years, so a simple before-and-after comparison would credit the workshops with a broader decline they hadn't caused. The researchers got around both by comparing facilities trained early against ones that had *also* signed up but not yet been trained — just as motivated, and moving through the same stretch of time. The staggered rollout, spread over several months, is what made those not-yet-trained facilities available as a comparison group.

Of course, the not-yet-trained facilities are only a fair stand-in if they really would have followed the same path — and that's something researchers take partly on faith. Two things earn it here: the groups had been moving in lockstep long before any training began, and no facility got to pick its place in line. The program set the schedule.

The two groups declined almost identically. Violations at trained facilities fell by about as much as at facilities still waiting to be trained, and no additional drop appeared once a facility had been through a workshop. The training added nothing to a decline that was already underway. **Trained facilities were no less likely to violate than facilities that had not yet been trained.**

TAKEAWAYS

THE WRONG DIAGNOSIS

Compliance assistance rests on the idea that facilities break the rules because they don't fully understand them. For these wastewater plants, that wasn't the case — extra training and guidance changed little, a sign that their violations had other roots. **A program that solves a problem facilities don't actually have was never likely to work.**

A MISLEADING SUCCESS

Before this study, the EPA's own numbers seemed to tell a success story, with a comparison of violations before and after the workshops showing them dropping by more than 50%. But that comparison was misleading, because **the same decline was happening at facilities that hadn't been trained at all**. What looked like the effect of the workshops was really just a broader downward trend, and without a credible benchmark to separate the two, it was easy to mistake one for the other.

WHAT'S AT STAKE

Buoyed by that apparent success, the EPA has moved to expand the program to other states. Scaling a program with little measurable effect commits more public funding without delivering the reduction in pollution it was meant to achieve. The lesson is not that assistance can never help; this is one program, and small benefits can't be ruled out. The point is that **such programs should be rigorously tested before they replace tools already known to work.**